



CHAPTER xxviii.

An Act for conferring further powers upon the Ryde Gaslight Company. A.D. 1904.
[24th June 1904.]

WHEREAS by the Ryde Gas Act 1866 (in this Act called “the Act of 1866”) the Ryde Gaslight Company (in this Act called “the Company”) were incorporated and were authorised (amongst other things) to manufacture and supply gas within the limits in that Act defined :

And whereas by the Act of 1866 it was enacted that the share capital of the Company should be fifty thousand pounds divided into four thousand shares of each of which the nominal value was twelve pounds ten shillings and in respect of one thousand five hundred of which (now known and in this Act referred to as “original shares”) a maximum dividend of nine pounds per centum per annum was authorised to be paid and in respect of two thousand five hundred of which (now known and in this Act referred to as “ordinary shares”) a maximum dividend of seven pounds per centum per annum was authorised to be paid :

And whereas the Company were authorised in respect of the said share capital of fifty thousand pounds to borrow on mortgage any sums not exceeding in the whole twelve thousand five hundred pounds :

And whereas the Company have created issued and expended the whole of the share and loan capital authorised to be raised by the Act of 1866 :

And whereas it is expedient that the share capital of the Company should be converted and consolidated as provided by this Act and that the Company be authorised to raise additional capital for the purposes of their undertaking and that the other powers hereinafter mentioned be conferred on the Company :

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—

And whereas the Company now supply gas at a fixed maximum price and it is expedient that provision should be made as in this Act contained whereby the rate of dividend payable by the Company upon their ordinary capital should be regulated according to the price charged for gas :

And whereas it is expedient that the limits within which the Company are by the Act of 1866 authorised to supply gas should be extended so as to include the whole of the parishes of Binstead and Asheys in the rural district of the Isle of Wight and the county of Southampton :

And whereas the objects aforesaid cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title.

1. This Act may be cited as the Ryde Gas Act 1904 and the Act of 1866 and this Act may be cited together as the Ryde Gas Acts 1866 and 1904.

Incorporation of general Acts.

2. The following Acts and parts of Acts are (subject to the provisions of and so far as applicable to the purposes of this Act) hereby incorporated with and form part of this Act (namely) :—

The Gasworks Clauses Acts 1847 and 1871 Provided that section 13 of the former Act shall be read as if the words “or any premises” were inserted after the words “private building” :

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (that is to say) :—

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for nonpayment of calls ;

The remedies of creditors of the Company against the shareholders ;

The borrowing of money by the Company on mortgage or bond ;

The consolidation of the shares into stock ;

The general meetings of the Company;

The making of dividends;

The giving of notices; and

The provision to be made for affording access to the special Act by all parties interested:

Part I. (relating to cancellation and surrender of shares)

Part. II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts:

And the Lands Clauses Acts (except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement).

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction.

Interpretation.

4. From and after the passing of this Act the limits of supply of the Company shall include in addition to their existing limits such parts of the parishes of Binstead and Ashey in the rural district of the Isle of Wight and county of Southampton as are not included in the Company's existing limits and the Company shall have and may exercise within the limits of supply all and the like powers privileges and authorities for and in relation to the supply of gas and shall be subject to all and the like duties liabilities and obligations in respect thereof as they now have and are subject to within the limits of supply of the Company as defined by section 5 of the Act of 1866.

Extension of limits of supply.

5.—(1) As from the first day of January one thousand nine hundred and five all the original and ordinary shares shall be converted and consolidated into one class of stock to be called ordinary stock according to the following scales (that is to say):—

Conversion of existing original and ordinary shares of Company.

For every original share twenty-two pounds ten shillings of ordinary stock;

For every ordinary share seventeen pounds ten shillings of ordinary stock.

(2) As on the first day of January one thousand nine hundred and five there shall be by virtue of this Act created such nominal amounts of five per centum ordinary stock as shall be necessary for the purpose of carrying into effect such conversions and the amounts of ordinary stock to which the holders of shares

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respectively become by virtue of this Act entitled in substitution for such shares shall be vested in such holders as from the first day of January one thousand nine hundred and five and shall be forthwith registered in their respective names in the books of the Company. Provided that no person shall become entitled to any fractional part of ten pounds of ordinary stock but in every case in which any person would but for this proviso have become entitled to a fractional part of ten pounds of such stock the Company may at their option issue to such person such a further amount of stock as will make up an even ten pounds receiving from him the market value thereof in cash or pay to such person in cash the market value of such fractional part in lieu of issuing to him such fractional part of ten pounds of stock.

Provided that neither such conversion nor anything in this Act contained shall have the effect (except as provided by the section of this Act of which the marginal note is "Application of premium arising on issue of stock") of increasing the maximum reserve fund prescribed by section 31 of the Gasworks Clauses Act 1847.

Ordinary
stock to be
held on same
trusts &c. as
shares for
which it is
substituted.

6. All ordinary stock issued to holders of original or ordinary shares shall be held in the same rights on the same trusts and subject to the same powers provisions charges and liabilities as those in upon or to which the shares for which the ordinary stock is substituted were held or were subject to immediately before the first day of January one thousand nine hundred and five and shall be dealt with applied and disposed of accordingly and so as to give effect to and not to revoke any deed will or other instrument disposing of or affecting any such of the shares and trustees executors or administrators or other incapacitated parties may accept ordinary stock in substitution for the shares held by them and may subject to the provisions of this Act retain dispose of or otherwise deal with the same as they might have retained disposed of or otherwise dealt with such shares.

Certificates
to be called
in and others
issued.

7. The Company shall call in the certificates of the original and ordinary shares and shall issue in exchange for those certificates to the respective holders thereof free of charge certificates of ordinary stock of the respective amounts to which those holders are by this Act respectively entitled but no holder shall be entitled to a certificate of the ordinary stock so substituted for the shares held by him until he shall have delivered up to the Company to be cancelled the certificate for which such certificate of stock is to be substituted or shall have proved to the reasonable satisfaction of the directors of the Company the loss or destruction thereof and shall have

given such guarantee or indemnity as the Company may require A.D. 1904.
 Provided always that until the issue of the certificate of such
 ordinary stock the certificate for which such new certificate is to
 be substituted shall according to the amounts of ordinary stock
 to be substituted by virtue of this Act for the shares which
 they respectively represent have and confer the same rights and
 advantages as if they were certificates for those respective amounts
 of ordinary stock which are to be so substituted for such shares but
 if any holder of any shares of the Company neglect or omit to send
 or deliver to the Company his existing certificate for the period
 of one year after notice in writing sent by post to the address
 appearing in the shareholders' address book the Company may
 suspend the payment of any dividend declared or made payable
 upon or in respect of the ordinary stock so held by him until
 such existing certificate is sent or delivered to the Company or
 is proved to the reasonable satisfaction of the directors of the
 Company to have been lost or destroyed On the issue of any
 certificate of ordinary stock the certificate or certificates for which
 it is substituted shall be cancelled.

8. All transfers or other dispositions of original and ordinary Transfers
of shares
although by
present name
to be valid.
 shares as existing up to the conversion thereof into ordinary stock
 by virtue of this Act shall after such conversion and notwith-
 standing this Act be valid and have due effect given to them
 respectively as transfers for the respective amounts of ordinary
 stock which the shares thereby expressed to be transferred or
 disposed of represent or which are or may be substituted for the
 same under the provisions of this Act although the instrument
 transferring or disposing thereof shall describe the same by the
 name or denomination which the shares transferred or disposed of
 had before such conversion and the bequest of or any covenant or
 provision of any deed or agreement relating to any specific or
 nominal amount of any original or ordinary shares shall be held to
 apply to ordinary stock of the amount into which such shares shall
 have been converted.

9.—(1) All ordinary stock of the Company shall be issued and Stock to be
transferable
in multiples
of 10/.
 be transferable only in amounts of ten pounds or multiples of ten
 pounds.

(2) Notice of the effect of this enactment shall be stated in all
 certificates of such stock.

10. Holders of ordinary stock shall be entitled to participate Rights of
holders of
stock.
 in the dividends and profits of the Company according to the

A.D. 1904. — amount of their interests in that stock and subject to the provisions of this Act such interests shall in proportion to the amount thereof confer on the respective holders of such stock the same privileges and advantages as would have been conferred by the shares for which the stock is substituted.

Application
of provisions
of Companies
Clauses Con-
solidation
Act 1845 to
ordinary
stock.

11. Subject to the provisions of this Act sections 7 10 to 13 and 62 to 64 of the Companies Clauses Consolidation Act 1845 shall extend and apply to the ordinary stock and sections 18 to 20 of that Act shall be deemed and construed to include and apply to ordinary stock and dividends thereon as if such stock and dividends respectively had been expressly named in the said sections.

Additional
capital.

12. The Company may raise additional capital not exceeding in the whole fifty thousand pounds by the creation and issue of ordinary stock but no such stock shall vest in the person accepting the same unless and until the full price of such stock including any premium obtained upon the sale thereof shall have been paid in respect thereof. Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of fifty thousand pounds.

New stock to
be offered by
auction or
tender.

13. Notwithstanding anything in this Act contained the Company shall when any stock created under the powers of the section of this Act the marginal note whereof is "Additional capital" is to be issued and before offering the same to the holder of any other stock in the Company and whether the ordinary stock of the Company is at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine. Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of stock and that the reserved price put upon such stock shall not be less than the nominal amount thereof and notice of the amount of such reserved price shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner and provided that no priority of tender shall be allowed to any holder of stock in the Company except that if any bidding or offer by tender of any holder or holders of stock be the same in amount as any bid or offer

made by any other person the bidding or offer of such holder or holders of stock shall be accepted in preference and preference may in like manner be given to any employee of the Company or any consumer of gas supplied by the Company whose bid or offer is the same in amount as any bid or offer made by any other person not being a holder of stock in the Company. A.D. 1904.

14. It shall be one of the conditions of any sale of stock under this Act that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Company within three months after such sale. Purchase money to be paid within three months.

15. The intention to sell any such stock by auction or by tender shall be communicated in writing to the town clerk of Ryde to the clerks to the district councils for every district wholly or partly included in the limits of supply and to the secretary of the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply. Notice to be given as to sale of stock.

16. When any stock created under the powers of this Act has been offered for sale by auction or tender and not sold the same may be disposed of by the directors at a price not less than the reserved price put upon the same for the purpose of sale by auction or tender or may be offered at such reserved price to the holders of ordinary stock of the Company in manner provided by the Companies Clauses Act 1863 Provided always that any stock not so disposed of or so offered and not accepted within the time prescribed by the said Act shall again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Act with respect to the sale of stock created under the powers of this Act except that the reserved price put upon such stock may upon such second sale if the directors of the Company think fit be less than the nominal amount thereof and any stock not then sold may be disposed of by the directors or offered to the holders of ordinary stock at not less than the last-mentioned reserved price and so from time to time until the whole of such stock is sold. Disposal of stock not sold by auction or tender.

17. Any sum of money which shall arise from the issue of any such stock by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Company but shall be expended in extending Application of premium arising on issue of stock.

A.D. 1904. — or improving the works of the Company or in paying off money borrowed or owing on mortgage by the Company and shall not be considered as part of the capital of the Company entitled to dividend. Provided that all such sums shall be deemed to be part of the nominal and paid up capital of the Company for the purpose of determining the powers of the Company to raise money by borrowing and the amounts they may place to the reserve renewal or insurance fund respectively.

Privileges
&c. of hold-
ers of addi-
tional capi-
tal.

18. Subject as hereinafter provided the additional capital raised by the Company under this Act shall be part of the general capital of the Company and save as otherwise provided in respect of such capital by the provisions of this Act the holders of stock in such additional capital shall be entitled to the like rights of voting and any other rights qualifications and privileges in proportion to the amount of their stock from time to time paid up and be subject to the like provisions and liabilities as the holders of stocks issued under this Act to the holders of the shares in the present capital of the Company.

Power to
borrow in
respect of
consolidated
capital.

19. The Company may at any time and from time to time after the thirty-first day of December one thousand nine hundred and four borrow on mortgage of the undertaking any sum or sums not exceeding (inclusive of the sum of twelve thousand five hundred pounds already borrowed in pursuance of the Act of 1866) one third of the nominal amount of the ordinary stock into which the share capital of the Company is by this Act consolidated.

Power to
borrow in
respect of
additional
capital.

20. The Company may subject to the provisions of this Act borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one-third part of the amount of the additional capital by this Act authorised to be raised and at the time actually issued but no part thereof shall be borrowed until the whole of the stock at the time issued together with the premium (if any) realised on the sale thereof shall have been fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such stock (and premium if any) has been issued and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

21. The Company may in respect of the powers of raising money on mortgage or bond conferred upon them by this Act create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time after the passing of this Act created and issued or granted by the Company under any previous Act or this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock issued after the passing of this Act.

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Debenture
stock.

22. All money raised or to be raised by the Company on mortgage or debenture stock under the provisions of any former Act relating to the Company or under this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act. Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest or dividend on their mortgages or debenture stock.

Priority of
mortgages
and debenture
stock
over other
debts.

23. All mortgages and bonds granted by the Company in pursuance of the Act of 1866 and subsisting at the passing of this Act shall during the continuance of such mortgages and bonds and subject to the provisions of the Act of 1866 have priority over any mortgages granted by virtue of this Act but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company.

Existing
mortgages
to have
priority.

24. Section 29 of the Act of 1866 is hereby repealed but without prejudice to any appointment heretofore made or to any proceedings pending at the passing of this Act. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of

Arrears may
be enforced
by appoint-
ment of a
receiver.

A.D. 1904. — a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than five thousand pounds in the whole.

Application
of moneys.

25. All moneys raised under this Act whether by stock debenture stock or borrowing shall be applied for the purposes of this Act and for the general purposes of the Company being in all cases purposes to which capital is properly applicable.

Receipt in
case of per-
sons not sui
juris.

26. If any money is payable to a shareholder or stockholder or mortgagee or debenture stock holder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Quorum of
general
meeting.

27. As from the first day of January one thousand nine hundred and five section 33 (Quorum of general meetings) and section 34 (Extraordinary meetings may be convened by shareholders) of the Act of 1866 shall be read and have effect as if the word "stockholders" had been inserted therein in lieu of the word "shareholders" and as if the amounts to be held by the stockholders in the capital of the Company had been four thousand pounds and two thousand pounds instead of two thousand pounds and one thousand pounds respectively.

Scale of
voting.

28.—(1) As from the first day of January one thousand nine hundred and five section 35 (Scale of voting) of the Act of 1866 shall be and the same is hereby repealed.

(2) As from that date at any general meeting of the Company every holder of less than one hundred pounds of ordinary stock shall be entitled to one vote every holder of one hundred pounds of ordinary stock shall be entitled to two votes and every holder of more than one hundred pounds of ordinary stock shall in respect of the first one hundred pounds of stock be entitled to two votes and to an additional vote for every complete one hundred pounds of stock beyond the first one hundred pounds held by him.

Qualification
and number
of directors.

29.—(1) As from the first day of January one thousand nine hundred and five section 37 (Number and qualification of directors) of the Act of 1866 shall be and the same is hereby repealed so far as it relates to the qualification of directors.

(2) As from that date the qualification of a director of the Company shall be the possession in his own right of not less than three hundred pounds of ordinary stock.

(3) The Company may from time to time vary the number of the directors of the Company but so that the number of directors shall not at any time be less than five nor more than seven.

(4) If any of the directors shall be made bankrupt or shall go to reside abroad or shall become lunatic or of unsound mind or shall neglect to attend a meeting of directors for six months (unless such neglect to attend be occasioned by illness or by any other reasonable cause allowed by the directors) then in any of the cases aforesaid the office of such director shall become vacant and thenceforth he shall cease from voting or acting as a director. A.D. 1904.

(5) The continuing directors may act notwithstanding any vacancy in the number of directors. Provided that if the number of directors shall by such vacancy be reduced below five the continuing directors shall elect another director in manner provided by section 89 of the Companies Clauses Consolidation Act 1845.

30. As from the first day of January one thousand nine hundred and five the prescribed number of auditors shall be one unless the number be increased to two by an order of a general meeting and such auditor or auditors shall be a member or members of the Institute of Chartered Accountants or the Incorporated Society of Accountants and Auditors and need not be a stockholder. Auditors.

31. If the clear profits of the undertaking of the Company in any year amount to a larger sum than is sufficient to pay the interest on the debenture stock and dividend on the ordinary stock at the authorised rate the excess beyond the sum necessary for that purpose may from time to time to the extent of one per centum per annum upon the paid-up capital of the Company be invested in Government or other securities and the dividends and interest arising from such securities shall also be invested in the same or the like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to one-twentieth of the paid-up capital of the Company which sum shall form an insurance fund to meet any extraordinary claim demand or charge which may at any time arise against or fall upon the Company from accidents strikes or other circumstances which in the opinion of a court of summary jurisdiction due care and management could not have prevented and if such fund be at any time reduced it may thereafter be again made up to the said sum and so from time to time as often as such reduction shall happen. Provided that when and so often as the said fund shall reach one-twentieth part of the said capital the interest thereon shall be carried to the credit of the fund available for dividend. Provided also that resort may from time to time be had to the Insurance fund.

A.D. 1904. — insurance fund to meet any extraordinary claim demand or charge as aforesaid although such fund may not at the time have reached or may have been reduced below the full amount of one-twentieth as aforesaid.

Power to create a reserve fund out of dividends in excess of standard rate of dividend and application thereof.

32. Where in any year the dividend of the Company on the ordinary capital of the Company shall exceed the standard rate by reason of the price charged by the Company for gas in such year being below the standard price then out of the amount of the divisible profits of the Company applicable to the payment of such excess of dividend the Company may in such year set apart such sum as they shall think fit and all sums (if any) so set apart by the Company and any reserve or other fund of the Company existing at the passing of this Act may be invested in Government or other securities and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividend in any year in which the clear profits of the Company shall be insufficient to enable the Company in such year to pay the dividend at the authorised rate on the ordinary capital of the Company and save as in this Act provided no sum shall in any year be carried by the Company to any reserve fund.

Renewals.

33. The directors of the Company may in each half year if they think fit appropriate out of the revenue of the Company and as part of the expenditure on revenue account any sum not exceeding an amount equal to one half per centum on the paid up capital for the time being of the Company to be called "the renewal fund" to provide for the renewal and repair of their gasworks mains and pipes and may from time to time appropriate any portion of such fund to such purposes.

Such fund shall be invested in any securities in which trustees are for the time being authorised to invest money and the dividends and interest arising from such securities shall also be invested in the same or like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to one-tenth of the paid-up capital for the time being of the Company:

Provided that when and so often as the said fund shall reach such sum the interest thereon shall be carried to the credit of the fund available for dividend. Provided also that if such fund be at

any time reduced below such sum it may thereafter be made up to that sum and so from time to time as often as such reduction shall happen. A.D. 1904.

34. As from the first day of January one thousand nine hundred and five section 26 (Limit of dividends on new capital) and section 51 (Limiting price of gas) of the Act of 1866 shall be and the same are hereby repealed. Repeal of sections 26 and 51 of Act of 1866.

35. Notwithstanding anything contained in the Act of 1866 as from the first day of January one thousand nine hundred and five the profits of the Company to be divided amongst the holders of the ordinary capital of the Company in any year shall not (except as by this Act provided) exceed the rate of five pounds per centum per annum which rate is in this Act referred to as "the standard rate of dividend." Limitation of profits.

36. On and after the said first day of January one thousand nine hundred and five the standard prices to be charged by the Company for gas supplied by them to persons who shall burn the same by meter shall within a radius of one mile and a quarter drawn from the clock tower of the Town Hall Ryde be three shillings and sixpence and in the remainder of the limits of supply be four shillings per one thousand cubic feet: Sliding scale.

Provided that the Company may increase or reduce the price charged by them for gas in the said portions of the limits of supply respectively above or below the said standard prices subject to a reduction or increase in the standard rate of dividend as follows:—

In respect of any half year during any part of which the prices charged by the Company for gas shall have been one penny or part of a penny above the standard prices respectively the dividend payable by the Company for that half year shall in respect of each penny or part of a penny by which the standard prices shall have been increased be reduced below the standard rate of dividend by one shilling and threepence upon every one hundred pounds of ordinary stock but such reduction shall be calculated only upon whichever of the said prices shall have been increased to the greater extent:

In respect of any half year during the whole of which the prices charged by the Company for gas shall have been one penny or more below the standard prices respectively the dividend payable by the Company for that half year may in respect of each penny by which the standard prices shall

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have been reduced be increased above the standard rate of dividend by one shilling and threepence upon every one hundred pounds of ordinary stock but such increase shall be calculated only upon whichever of the said prices shall have been reduced to the less extent :

Provided that if in any half year the dividend payable shall comprise a fractional amount less than one quarter per centum the Company may defer the payment of such fractional amount until the payment of the next or some succeeding dividend and shall in the discretion of the Company either add such fractional amount to and pay the same with such succeeding dividend accordingly or add the same to the reserve fund.

Application
of excess of
profits over
authorised
rate of divi-
dend.

37. If the clear profits of the undertaking in any half year amount to a larger sum than is sufficient to pay the dividend at the authorised rate on the ordinary stock of the Company the excess or such portion of it as is not carried to the insurance fund or the renewal fund shall be carried to the credit of the divisible profits of such undertaking for the next following year.

Declaration
by directors
of half-yearly
dividends.

38. The directors may declare and pay a half-yearly dividend payable out of the profits of the Company for any half year ending on the thirty-first day of December without the sanction or direction of a general meeting of stockholders but no such half-yearly dividend shall exceed one half of the authorised rate of dividend.

Closing of
transfer
books pre-
vious to de-
claring divi-
dend.

39. The directors may close the register of transfers for a period not exceeding fourteen days previous to the declaration of any dividend and they may fix a day for closing the same of which seven days' notice shall be given by advertisement in a newspaper published in the Isle of Wight and any transfer made during the time when the transfer books are so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend.

Power to
purchase
lands by
agreement.

40. The Company may for the purposes of their undertaking purchase take and hold (by agreement but not otherwise) in addition to the lands now belonging to or authorised to be acquired by them any lands and hereditaments not exceeding in the whole five acres which the Company may require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas

or residual products except the lands which the Company are authorised by the Act of 1866 to use for such purposes. A.D. 1904.

41. The Company may purchase or take on lease houses cottages and buildings for persons in their employ and offices showrooms and other buildings for the purposes of their undertaking and may erect maintain and let any of such buildings upon any lands for the time being belonging or leased to the Company. Dwelling-houses for persons in Company's employ.

42. The Company may sell and dispose of or may let on lease for such period as they think fit any lands for the time being belonging to them which are not required for the purposes of their undertaking and any such disposal or lease may be for such consideration and subject to such reservations stipulations and conditions as the Company think fit And notwithstanding anything in the Gasworks Clauses Act 1871 contained the provisions of sections 128 to 132 of the Lands Clauses Consolidation Act 1845 shall not apply to any lands sold or disposed of by the Company under the powers of this section. Power to sell and lease lands.

43. The Company may upon the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street or road laid out or made but not dedicated to public use supply such premises with gas and may lay down take up alter relay repair or renew in across or along or out of such street or road such pipes and apparatus as may be requisite or proper for furnishing such supply and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof. Power to lay pipes in streets or roads not dedicated to public use.

44. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator of approved make or pattern and shall at all times at his own expense keep such anti-fluctuator in proper repair and in default of his so using or keeping such anti-fluctuator in proper repair the Company may cease to supply gas to such consumer The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removing testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer. Power to require use of anti-fluctuators for gas engines.

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Power to
supply gas
fittings and
fittings not
to be subject
to distress.

45.—(1) The Company may sell let for hire and otherwise deal in fix repair and remove but shall not manufacture engines stoves ranges pipes fittings and other apparatus appliances and things (in this section called "fittings") for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon between the Company and the persons to or for whom the fittings are sold let fixed repaired or removed.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

Gas con-
sumers to
give notice
to Company
before re-
moving.

46. Twenty-four hours' notice in writing shall be given to the Company by every gas consumer before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed upon every demand note for gas rent payable to the Company.

Notice of
discontinu-
ance.

47. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company.

Power to
refuse to
supply per-
sons in debt
for other
premises.

48. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying to them all gas or meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same.

49. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Company.

A.D. 1904.

Period of
error in de-
fective me-
ters.

50. No penalty shall be incurred by the Company for neglect or refusal to give a supply of gas in accordance with the provisions of the Act of 1866 and of this Act or for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which the court having cognizance of the case are of opinion that such neglect refusal insufficiency defect or excess was caused by circumstances beyond the control of the Company. Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company.

No penalty
in case of
unavoidable
cause.

51.—(1) The Company may contract with any local authority company or person beyond the limits of supply (but only with the consent in writing of the local authority of the district within which the supply is to be given and of any company or person supplying gas under parliamentary powers in that district) for the supply to them of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon.

Company
may enter
into con-
tracts for
supply of
gas.

(2) The Company may enter into any contract with any person for a supply of gas to any premises within the limits of supply and such supply may be given for such purposes and subject to such terms and conditions as to price and otherwise as may be agreed upon between the Company and the person taking such supply:

Provided that the Company shall not under the powers of this subsection give any preferential price as between any consumers who shall take a supply from the Company under similar conditions and circumstances.

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(3) The Company shall not supply gas under any such contract as aforesaid if and so long as such supply would interfere with the supply of gas to private consumers.

Costs of Act.

52. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

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